

Track 1 — Chapter Build Pass

MPEP Chapter 1400 · Correction of Patents (Certificate of Correction, Reissue, Disclaimers)

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: Fixing a Patent After It Issues

Chapter 1400 is really about matching the right correction tool to the right problem — a small error, a claim scope problem, a double-patenting issue, or third-party-discovered prior art each has its own specific mechanism, and the exam loves testing whether you pick the right one.

Rule 1: Certificate of Correction — Office Mistakes vs. Applicant Mistakes (§1481)

PLAIN ENGLISH

A **certificate of correction** fixes minor errors in an issued patent. It's available for USPTO-caused clerical/typographical errors (no fee required for Office mistakes) and, more narrowly, for applicant's own clerical/typographical or minor errors made in good faith where the correction doesn't require re-examination and is clearly evident from the patent/file. It cannot be used to make substantive changes broadening or fundamentally altering claim scope.

EXAMPLE

A patent issues with an obvious typo in a claim ('componant' instead of 'component') that's clearly a typographical error apparent from the specification. A certificate of correction can fix this without reopening examination — but couldn't be used to add an entirely new claim limitation.

QUIZ

Can a certificate of correction be used to broaden the scope of an issued claim substantively?

- (A) Yes, for any correction requested within 2 years
- (B) No — it's limited to clerical/typographical or minor errors, not substantive scope changes
- (C) Yes, if the patentee pays an additional fee
- (D) Yes, but only for design patents

Rule 2: Reissue Applications — Purpose & the "Error" Requirement (§1402)

PLAIN ENGLISH

A **reissue application** corrects an issued patent believed to be wholly or partly inoperative or invalid due to a defective specification/drawing, or because the patentee claimed more or less than they had a right to claim — due to **error**, without deceptive intent. Reissue can broaden claims (only within **2 years** of the original patent's grant) or narrow them (no 2-year limit).

EXAMPLE

A patentee realizes, three years after issuance, that their claims were narrower than what they were actually entitled to claim based on their disclosure. Because more than 2 years have passed, they can no longer file a broadening reissue — but a narrowing reissue would still be available at any time.

QUIZ

A patentee wants to broaden their claims via reissue 3 years after the patent issued. Is this timely?

- (A) Yes, broadening reissue has no deadline
- (B) No — broadening reissue must be filed within 2 years of the original patent's grant
- (C) Yes, if filed within 5 years
- (D) No, broadening reissue is never allowed

Rule 3: Recapture Rule in Reissue (§1412.02)

PLAIN ENGLISH

The **recapture rule** prevents a patentee from using reissue to recapture subject matter that was deliberately surrendered during the original prosecution (e.g., narrowed to overcome a prior art rejection) by broadening the claims back to cover that surrendered subject matter, unless the broadening is materially different from what was surrendered.

EXAMPLE

During original prosecution, an applicant narrowed a claim by adding a limitation to overcome an obviousness rejection. If they later try to reissue and remove that exact limitation to broaden back to the original scope, the recapture rule bars this — they gave that ground up on purpose.

QUIZ

During original prosecution, a claim limitation was added specifically to overcome a rejection. In reissue, the patentee tries to remove that exact limitation to broaden the claim back. What rule likely bars this?

- (A) The written description requirement
- (B) The recapture rule
- (C) The double patenting doctrine
- (D) The best mode requirement

Rule 4: Ex Parte Reexamination Basics (bridge to Ch. 2200) (§1449 cross-ref)

PLAIN ENGLISH

Distinguish reissue (patentee-initiated, can address many types of defects including claim scope, inventorship, and specification errors) from **reexamination** (can be initiated by anyone, including the patent owner, and is limited to patents/printed publications raising a **substantial new question of patentability** — see the dedicated Chapter 2200 PDF for reexamination details).

EXAMPLE

A third party who discovers highly relevant prior art not considered during original examination can request ex parte reexamination based on that art, whereas that same third party could NOT file a reissue application, since reissue is limited to the patentee.

QUIZ

Who can request ex parte reexamination of a patent?

- (A) Only the patent owner
- (B) Any party, including the patent owner or a third party
- (C) Only the USPTO Director sua sponte
- (D) Only a federal court

Rule 5: Disclaimers (§1490)

PLAIN ENGLISH

A patentee may file a **statutory disclaimer** to give up (disclaim) one or more entire claims of an issued patent (e.g., to remove an invalid claim without a full reissue or reexamination proceeding), and separately, a **terminal disclaimer** to give up the terminal (ending) part of a patent's term, most commonly to overcome obviousness-type double patenting, often coupled with a common-ownership requirement.

EXAMPLE

A patentee realizes one claim in an issued patent is clearly invalid over art discovered after issuance. Rather than going through reissue or reexamination, they can file a statutory disclaimer to simply give up that specific claim, leaving the remaining valid claims intact.

QUIZ

What is the purpose of a terminal disclaimer, as most commonly used?

- (A) To broaden claim scope
 - (B) To overcome obviousness-type double patenting by tying patent terms together
 - (C) To correct a clerical error
 - (D) To request expedited examination
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Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. A patentee wants to fix an obvious typographical error in an issued claim that's clearly evident from the specification. What tool is appropriate?

- (A) Reissue
- (B) Certificate of correction
- (C) Ex parte reexamination
- (D) Terminal disclaimer

2. A patentee wants to broaden claims 18 months after issuance. Is a broadening reissue timely?

- (A) Yes, within the 2-year window
- (B) No, broadening reissue has no deadline so this is irrelevant
- (C) No, all reissues have a 6-month deadline
- (D) Yes, but only with USPTO Director approval

3. During original prosecution, an applicant narrowed a claim to overcome a §103 rejection. In a later reissue, they try to broaden back to the original, broader scope. This is most likely barred by:

- (A) The recapture rule
- (B) The written description requirement
- (C) The utility requirement
- (D) The rule against new matter, exclusively

4. Which correction mechanism can be initiated by a third party who is not the patent owner?

- (A) Reissue
- (B) Certificate of correction for applicant error
- (C) Ex parte reexamination
- (D) Terminal disclaimer

5. True or False: A terminal disclaimer and a statutory disclaimer of an entire claim serve the same purpose.

- (A) True
- (B) False

Memorize This: Key Tests & Terms

- **Certificate of correction:** clerical/typographical fixes only, no substantive scope broadening.
- **Reissue:** patentee-only; broadening reissue must be filed within **2 years** of grant; narrowing reissue has no such deadline.
- **Recapture rule:** can't use reissue to broaden back into subject matter deliberately surrendered during original prosecution.
- **Reexamination** (any party) vs. **reissue** (patentee only) — know who can file each.
- **Terminal disclaimer** (patent term, usually double patenting) vs. **statutory disclaimer** (gives up an entire claim) — different tools.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: Certificate of Correction — Office Mistakes vs. Applicant Mistakes (§1481)

Can a certificate of correction be used to broaden the scope of an issued claim substantively?

Answer: B

Certificates of correction are a narrow, clerical-error tool — substantive scope changes require reissue instead.

Rule 2: Reissue Applications — Purpose & the "Error" Requirement (§1402)

A patentee wants to broaden their claims via reissue 3 years after the patent issued. Is this timely?

Answer: B

The 2-year deadline for broadening reissue is a hard, frequently tested statutory limit; narrowing reissue has no such deadline.

Rule 3: Recapture Rule in Reissue (§1412.02)

During original prosecution, a claim limitation was added specifically to overcome a rejection. In reissue, the patentee tries to remove that exact limitation to broaden the claim back. What rule likely bars this?

Answer: B

This is precisely the fact pattern the recapture rule targets — deliberately surrendered subject matter can't simply be recaptured through reissue broadening.

Rule 4: Ex Parte Reexamination Basics (bridge to Ch. 2200) (§1449 cross-ref)

Who can request ex parte reexamination of a patent?

Answer: B

Unlike reissue (patentee-only), reexamination can be requested by any party — a key distinguishing feature between the two correction mechanisms.

Rule 5: Disclaimers (§1490)

What is the purpose of a terminal disclaimer, as most commonly used?

Answer: B

Terminal disclaimers are the standard tool for resolving obviousness-type double patenting — don't confuse this with a statutory disclaimer of an entire claim, which serves a different purpose.

Chapter Close-Out Quiz

1. (B)

Clear, evident typographical errors are exactly what a certificate of correction is designed to fix without reopening examination.

2. (A)

18 months is within the 2-year broadening reissue window, so this is timely.

3. (A)

This is the textbook recapture rule scenario: deliberately surrendered subject matter can't be recaptured via reissue broadening.

4. (C)

Ex parte reexamination is open to any party, unlike reissue, which only the patentee/patent owner can file.

5. (B) False

A terminal disclaimer addresses patent term (usually for double patenting); a statutory disclaimer gives up an entire claim — different tools for different problems.